

Defendant Andrews's March 19, 2026, demurrer to the December 1, 2025, complaint is denied. At bar, Plaintiff was allowed leave to amend after previous demurrers were granted. Plaintiff's first amended complaint (FAC) was filed and served on May 7, 2026. "[A]n amendatory pleading supersedes the original one, which ceases to perform any function as a pleading." *JKC3H8 v. Colton* (2013) 221 Cal.App.4th 468, 477 (quotations omitted). "The amended complaint furnishes the sole basis for the cause of action, and the original complaint ceases to have any effect either as a pleading [¶] Because there is but one complaint in a civil action, the filing of an amended complaint moots a motion directed to a prior complaint." *Ibid.* (quotations and citations omitted). Thus, the March 19, 2026, demurrer as to the original complaint is moot and denied as such.

The June 4, 2026, demurrer to the FAC by Defendant Andrews is confirmed for hearing on September 11, 2026. The June 8, 2026, demurrer to the FAC by Defendant Hasbun is advanced for hearing from October 2, 2026, to September 11, 2026. All remaining briefs shall be filed in accordance with the Rules of Civil Procedure.

6. CU0002718 Zachary J. Goepel v. U-Haul Co Of California et al

Plaintiff Zachary Goepel's motion for preliminary injunction is denied without prejudice.

The Court previously continued the order to show cause to June 26, 2026, ordering "Plaintiff to lodge an order to show cause and continuing [the] restraining order with the Court no later than 5/19/2026." The moving papers were filed one day late, on May 20, 2026. Due to clerical error, the proposed temporary order and order to show cause were not brought to the attention of the Court and did not issue. The Court apologizes for this clerical oversight. Moreover, there is no evidence that any of the moving papers have been served on the Defendants.

The above procedural issues notwithstanding, Plaintiff presently has not submitted any evidence to show he is entitled to relief. Preliminary injunctive relief requires the use of competent evidence to create a sufficient factual showing on the grounds for relief. See, e.g., *ReadyLink Healthcare v. Cotton* (2005) 126 Cal.App.4th 1006, 1016; *Ancora-Citronelle Corp. v. Green* (1974) 41 Cal.App.3d 146, 150. Injunctive relief may be granted based on a verified complaint, sworn declarations, affidavits, or any combination of the foregoing provided facts sufficient for relief are contained there. Code Civ. Proc. §§ 527(a), (h); 2009; 2015.5.

The trial court considers two factors in determining whether to issue a preliminary injunction: (1) the likelihood the plaintiff will prevail on the merits of its case at trial, and (2) the interim harm the plaintiff is likely to sustain if the injunction is denied as compared to the harm the defendant is likely to suffer if the court grants a preliminary injunction. Code Civ. Proc. § 526(a). The balancing of harm between the parties "involves consideration of such things as the inadequacy of other remedies, the degree of irreparable harm, and the necessity of preserving the status quo." *Husain v. McDonald's Corp.* (2012) 205 Cal.App.4th 860, 866-867.

At bar, the declaration Plaintiff included with his motion is incomplete and ambiguous. For example, the Plaintiff's declaration states, "Beginning on or about [insert dates], my gate credentials stopped working and/or overlocks were placed on [identify units/dates], preventing access." Goepel Decl., 7:8-9. No specific dates or locations are noted. Subsequently, Plaintiff

indicates that, “Attached as Exhibits 1 – [] are true and correct copies of...” Goepel Decl., 7:17. However, no exhibits are attached. On this record, Plaintiff has failed to provide sufficient competent evidence to demonstrate a likelihood he will prevail on the merits of his case.

7. CU0002182

County of Nevada v. Successors of Myrna Buettner

Appearances required by all parties for the review hearing regarding status as to the sale of the home and compliance agreement.